

Court No. - 41

Case :- WRIT - C No. - 10980 of 2016

Petitioner :- Ravi Kant Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Sri Suman Kumar Yadav, learned counsel appearing on behalf of the respondent-corporation may obtain instructions within three days.

Put-up in the additional cause list on 15th March, 2016.

Order Date :- 9.3.2016

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Court No. - 41

Case :- WRIT - C No. - 10980 of 2016

Petitioner :- Ravi Kant Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put up tomorrow i.e. 16.3.2016.

Order Date :- 15.3.2016

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Court No. - 41

Case :- WRIT - C No. - 10980 of 2016

Petitioner :- Ravi Kant Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put up tomorrow i.e. 17.3.2016.

Order Date :- 16.3.2016

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Court No. - 41

Case :- WRIT - C No. - 10980 of 2016

Petitioner :- Ravi Kant Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put up tomorrow i.e. 18.03.2016 in the additional cause list.

Order Date :- 17.3.2016

A.K.Verma

Court No. - 41

Case :- WRIT - C No. - 10980 of 2016

Petitioner :- Ravi Kant Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Vikram Nath,J.

Hon'ble Amar Singh Chauhan,J.

Put-up on 28th March, 2016 in the additional cause list.

Order Date :- 18.3.2016

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Court No. - 3

Case :- WRIT - C No. - 10980 of 2016

Petitioner :- Ravi Kant Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

On request made by the learned counsel for the petitioner, put up this matter day after tomorrow.

Order Date :- 28.3.2016

A. Pt. Singh

Court No. - 3

Case :- WRIT - C No. - 10980 of 2016

Petitioner :- Ravi Kant Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jata Shankar Pandey,Dheeraj Kumar Dwivedi

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Krishna Murari,J.

Hon'ble Vinod Kumar Misra,J.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the recovery certificate dated 27.02.2016 issued by the respondent no. 2.

It is contended on behalf of the petitioner that in a case of an alleged theft of electricity, Rs.10,000/- was fixed as electricity charges and Rs.8000/- as compounding charges, which were duly deposited by the petitioner and subsequently, he again deposited a sum of Rs.15,631/- under One Time Settlement but without disclosing any reason, a citation for recovery of a sum of Rs.2,15,703/- + 10% recovery charges has been issued for alleged dues of respondent no. 3, on the basis of provisional assessment bill.

On the other hand, Sri S.K.Yadav, learned counsel for the respondent no. 3 contended that recovery certificate has been issued on the basis of the provisional assessment to which the petitioner has not filed any objection and thereafter, the provisional assessment made was treated as final assessment and accordingly bill was raised and when the same has not been paid by the petitioner the recovery certificate has been issued.

At this stage, learned counsel for the petitioner states that since the provisional assessment bill has not been served on the petitioner, as such, he could not file objection.

This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no order of final assessment has been passed containing satisfaction of the authority about service of provisional assessment notice as is required in law, therefore, the impugned recovery proceeding cannot be sustained and is liable to be set-aside.

Consequently, the writ petition is allowed. The impugned recovery citation dated 27.02.2016 for recovery of electric dues Rs.

2,15,703/- and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in ***Ashok Kumar (supra)***.

Order Date :- 30.3.2016

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